

		Thus, the motion does not meet the requirements of Code Civ. Proc. § 2031.210(b). The motion is DENIED. Defendant Trabuco Highlands Comm. Assoc. shall give notice.
9	Luna v. Hyundai Motor America 2023-01339476 Motion to Enforce Settlement	Plaintiffs, Santiago Luna and Jonathan Luna have shown the parties entered a settlement agreement which provided for the Court to retain jurisdiction pursuant to section Code Civ. Proc. § 664.6. Plaintiffs' request to enter judgment pursuant to the settlement is GRANTED. The settlement required Defendant to schedule the vehicle surrender within 60 days and for Plaintiffs to provide vehicle registration and other necessary documents to effectuate the transfer. (Ex. A, ¶ 3.) Plaintiffs assert Defendant failed to timely schedule the surrender and Defendant asserts Plaintiffs failed to timely provide current registration. Since the 60-day surrender period has passed, enforcing the settlement agreement would apparently require the Court to "create material terms," such as imposing a new transfer deadline, which section 664.6 does not allow. (See <i>Hernandez v. Board of Education</i> (2004) 126 Cal.App.4th 1161-1175-1176.) Therefore, the motion is DENIED without prejudice as to enforcement of the settlement. The parties are strongly encouraged to meet and confer to resolve this dispute informally to avoid wasting judicial resources and incurring further attorney fees. The Court may impose monetary sanctions against either or both parties and/or their counsel if the Court finds they have failed to engage in good-faith efforts to comply with this order and complete the settlement in good faith. Plaintiffs shall give notice.
10	Morrell v. City of Huntington Beach 2025-01459049 Motion for Summary Judgment Granted	Defendant City of Huntington Beach's Motion for Summary Judgment is GRANTED. The City's objections to evidence are sustained. However, the Court declines to rule on any objections improperly asserted in the parties' respective separate statements that were not also filed separately as required. (See Cal. Rules of Ct., rule 3.1354(b); <i>Hodjat v. State Farm Mutual Automobile Ins. Co.</i> (2012) 211 Cal.App.4th 1, 8-9. The City contends it is entitled to summary judgment on the grounds that (1) it did not have either actual or constructive notice of the allegedly dangerous condition, and (2) Plaintiff cannot establish that a negligent act of a City employee created the allegedly dangerous condition.

		Government Code § 835 sets forth the parameters when a public entity is liable for injury caused by a dangerous condition. Government Code § 835.2 explains the notice requirements referenced in Government Code § 832. Plaintiff has provided no evidence or established a triable material issue that a negligent act of any City employee created the dangerous condition. The City did not have actual notice of the condition of the sidewalk prior to the incident since there were no previous reports of the condition of the sidewalk or injuries caused by the condition of the sidewalk. Plaintiff has not submitted admissible evidence refuting the City's evidence. Regarding constructive notice, Plaintiff cannot prove the condition was sufficiently obvious. Plaintiff concedes in her discovery response that the condition was not open and obvious. Defendant shall give notice.
11	Ramos v. General Motors, LLC 2025-0145992 Motion for Attorney Fees	Plaintiff, Michele L. Ramos' motion for award of reasonable attorneys' fees, costs and expenses is GRANTED, as modified. The court awards attorneys' fees of \$10,665 (\$450 x 23.7 hrs.). Costs: Plaintiff has filed a Memorandum of Costs in which she seeks \$578.76 in costs. Plaintiff is awarded \$578.76 in costs. [T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) "As the plain wording of section 1794, subdivision (d) makes clear, the trial court is 'to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.'" (<i>Ibid.</i>) Defendant challenges the total number of billable hours claimed by Plaintiff's counsel. First, Defendant challenges the 1.9 hours billed by Plaintiff's counsel for pre-engagement work. Time spent evaluating a potential client prior to engagement is not recoverable, therefore, the hours requested are reduced by 1.9.